

**ANGEL PLACE
LEVEL 8, 123 PITT STREET
SYDNEY NSW 2000**

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17 March 2025

Kiersten Fishburn
Secretary
NSW Department of Planning, Housing and Infrastructure
Submitted on the NSW Major Projects Portal

Dear Kiersten,

REQUEST FOR INDUSTRY SPECIFIC SEARS - 78 LOCKWOOD ROAD, ERSKINE PARK - DATA CENTRE

This letter has been prepared on behalf of STACK Infrastructure (the **Applicant**).

It provides a detailed description of the subject site and proposed project, and requests industry-specific Secretary's Environmental Assessment Requirements ('**SEARs**') from the NSW Department of Planning, Housing and Infrastructure (**DPHI**), as a precursor to an initial 'Scoping Meeting' with key Departmental staff.

Specifically, the proposal seeks to establish a new data centre development at 78 Lockwood Road, Erskine Park. Further details of the site are provided in **Section 2** and further details of the proposal are provided in **Section 4**.

The proposal is State Significant Development (**SSD**) because it is development for data centre purposes which has a total power consumption of more than 15 megawatts, in accordance with Section 25 of Schedule 1 of the *State Environmental Planning Policy (Planning Systems) 2021*. Accordingly, a State Significant Development Application (**SSDA**) will be required to be lodged for approval via the DPHI.

State Environmental Planning Policy (Industry and Employment) 2021 (IE SEPP) is the primary planning instrument applicable to the site. The site is zoned IN1 (General Industrial). Under the IE SEPP, 'data centres' are a type of 'light industry' which is captured under the 'industry' group term. Accordingly, 'data centres' are permitted with consent in the IN1 zone under the IE SEPP.

The project qualifies for 'Industry Specific' SEARs because it would not otherwise be classified as 'designated development', is not partly prohibited (or prohibited), and does not involve a Concept SSDA.

1. APPLICANT DETAILS

The applicant details for the proposed development are listed in the following table.

Table 1 Applicant Details

Descriptor	Proponent Details
Full Name(s)	STACK INFRASTRUCTURE AUSTRALIA (78 LOCKWOOD ROAD) PTY LTD
Postal Address	L14, 627 Chapel Street, South Yarra, Vic, 3141, Australia
ABN	ACN 683 088 495
Nominated Contact	Michael Dyer
Contact details	Mobile - +61 439 909 303; Email - mdyer@stackinfra.com

2. SITE DESCRIPTION

The site is located at 78 Lockwood Road, Erskine Park, within the Penrith Local Government Area (LGA), approximately 40km west of the Sydney Central Business District (CBD), 20km west of the Parramatta CBD, and 10km north-east of the future Western Sydney International Airport.

The site is an irregular shaped 7.7-hectare (ha) lot bounded to the north by Lenore Drive and to the east by a zoned E2 Environmental Conservation corridor that follows Ropes Creek. It relies upon access from a cul-de-sac at the eastern end of Lockwood Road at the site's southern boundary. An aerial photograph is provided at **Figure 1**.

The site is located within the 'Fitzpatrick Industrial Estate', an area of approximately 140-ha of land located on Lenore Drive. The estate is bounded by Ropes Creek to the east, the Erskine Park residential area to the north, and the Sydney Catchment Authority pipeline to the south. The Fitzpatrick Industrial Estate is located within the Western Sydney Employment Area (WSEA). The WSEA has long been identified as the single largest greenfield industrial precinct to serve the growing demand for industrial lands in the Sydney Metropolitan Area for the next 20 to 30 years.

The site is surrounded by a variety of industrial land use activities and significant transport and utilities infrastructure. Immediate surrounding development includes:

- **North:** The site is bounded to the north by Lenore Drive and the adjacent AutoNexus, a provider of automotive logistics and supply chain solutions. Further afield is the Erskine Park residential area.
- **East:** Ropes Creek adjoins the site to the east. This is zoned E2 – Environmental Conservation. An artificial wetland was established immediately east of the subject property boundary and within this E2 zoned land
- to support the industrial use of the site which results in stormwater runoff being conveyed to the E2 corridor.
- **South:** The Sydney Catchment Authority Pipeline is located approximately 540 metres to the south.

- **West:** Lot 101 and the remainder of the Fitzpatrick Industrial Estate comprise the surrounding land uses to the west. These include a variety of warehouse and logistics land uses.

The following table summarises the key features of the site.

Table 2 Site description

Feature	Description
Site address	78 Lockwood Road, Erskine Park, NSW, 2759
Legal description	Lot 101 in Deposited Plan 1268632
Site area	77,243.55m ²
Frontages	▪ North (approx. 357m): Lenore Drive ▪ East (approx. 498m): Environmental conservation land, including an artificial dam at the immediate north-east and Ropes Creek further east ▪ South (approx. 292m): Lockwood Road (at south-west); Residual industrial land (along remainder of frontage) ▪ West (approx. 207m): Industrial land
Site topography	The site is generally flat, however exhibits a fall of approximately 3m from the west to the east. The existing site levels were created following the approval of DA19/0818.
Vegetation	The site has been largely cleared of vegetation. There is a small strip of grass and young trees along the northern boundary alignment, on a temporary bund established under DA19/0818. This area of the site is not identified as having any significant biodiversity or environmental qualities. A small portion of the site area – approx. 538m ² of land at the south-east – is zoned C2 Environmental Conservation zone and contains a small amount of grass and tree canopy.
Built environment	The site comprises vacant land and does not contain any existing built form structures. The site survey indicates that there is a drainage channel along the northern boundary of the site.
Contamination	Contamination issues on the site and across the broader, original landholding (being the Fitzpatrick Estate) were considered and resolved as part of development consent DA06/1646. A Validation Report dated 2007 outlined remediation works required and confirmed that the Fitzpatrick Estate lands could be made suitable for industrial uses. A later Validation Report, dated November 2008, was commissioned subsequent to site remediation. This report confirmed that the risk of contamination on the site was greatly reduced following the remediation works.
Flooding	The eastern portion of the site is identified as flood prone land.
Bushfire	The majority of the site is identified as Vegetation Category 2 bushfire land, with the exception of land along the northern boundary which is identified as Vegetation Buffer land.
Biodiversity	The site is predominantly cleared of all vegetation. The Fitzpatrick Estate has been the subject of a Biodiversity Management Plan (prepared by Kevin Mills and Associates) and a Voluntary Planning Agreement (VPA) which resulted in the establishment of the

Feature	Description
	Erskine Park Biodiversity Corridor. This is in place to offset the losses in biodiversity from the overall development of the Estate lands and forms part of the Ropes Creek biodiversity corridor. Previous approvals for site preparation works, including the creation of development pads, granted consent for the removal of most vegetation from the site. To this end, it is considered that any future SSD application could be subject to a waiver from the standard requirement to prepare a Biodiversity Assessment Report (BDAR).
Salinity	The 'Salinity Potential of Western Sydney' map prepared in 2002 by the then Department of Infrastructure, Planning and Natural Resources identifies the site is an Area of Moderate Salinity Potential.
Acid Sulfate Soils	The land is not mapped as containing Acid Sulfate Soils.
European Heritage	The land is not affected by any heritage listings or draft heritage listings. The site is not located within any listed or draft Heritage Conservation Area.
Aboriginal Heritage	Previous Aboriginal cultural investigations have confirmed that given the highly disturbed nature of the site, the potential for Aboriginal cultural relics on the land was found to be low.
Obstacle Limitation Surface	The land is affected by the Obstacle Limitation Surface (OLS) restrictions which apply to the Western Sydney Airport, pursuant to Chapter 4 of <i>State Environmental Planning Policy (Precincts—Western Parkland City) 2021</i> . Development on the land is restricted to a maximum height of RL 230.5m AHD.

Figure 1 Aerial Photograph of Subject Site



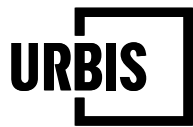
Source: Urbis, 2024

3. PREVIOUS APPROVALS

The site has been subject to several local Development Applications (**DAs**) lodged with Penrith City Council. These are summarised in the following table.

Table 3 Local Development Approval History

DA Reference	Description and Status	Relationship to 78 Lockwood Road
DA19/0817	Construction of an artificial water body (detention basin) and civil and earth works Approved by Penrith City Council on 8 September 2020	This DA involved the construction of the existing dam within the C2-zoned land adjoining the site to the east. The purpose of the artificial waterbody was to provide detention storage and tertiary water quality treatment for three developments in the vicinity, including for future development on the subject site.



DA Reference	Description and Status	Relationship to 78 Lockwood Road
DA19/0818	Bulk earthworks and stormwater infrastructure Approved by Penrith City Council on 15 September 2020	This DA involved cut and fill earthworks across approximately 12.6ha of land – including 78 Lockwood Road – to establish new site levels for three future development sites.
DA20/0493	Torrens Title subdivision of 2x lots Approved by Penrith City Council on 2 October 2020	This DA created the existing Torrens Titled lots within a residual parcel of the Fitzpatrick Estate, including 78 Lockwood Road.

4. DEVELOPMENT DESCRIPTION

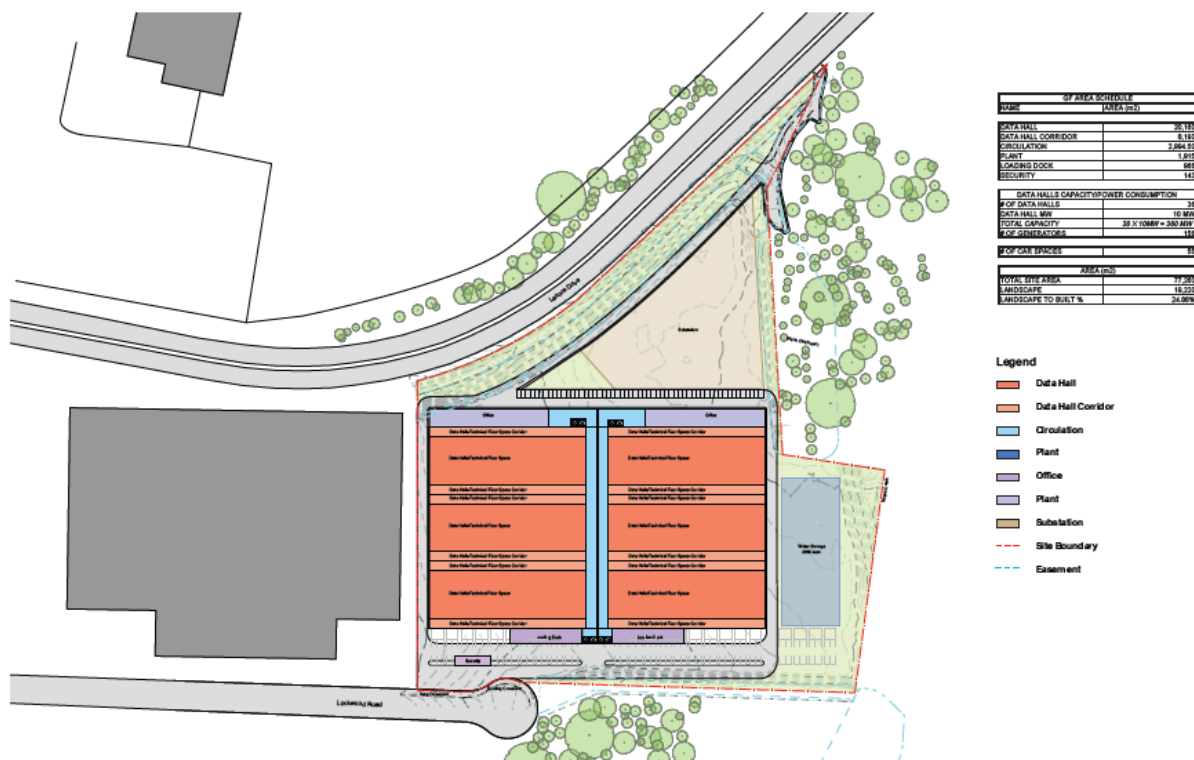
The key components of the proposed development are listed in the following table.

Table 4 Project Details

Descriptor	Project Details
Project Area	The data centre development relates to Lot 101 in Deposited Plan 1268632 and comprises an area of approximately 77,243.55m ² .
Project Description	The project comprises the construction of a data centre including the following key components: ▪ Site preparation and bulk earthworks. ▪ Construction of a new data centre development comprising approximately 82,020m² of GFA. Indicative built form parameters include (<i>noting these are subject to design resolution as the project is progressed</i>): - Circa 24 metre building height. - Circa 3 storeys - Data halls across 2 levels. - Circa 156 generators for backup power. ▪ At grade car park (55 spaces) undercroft within the building footprint. ▪ Landscaping and associated public domain works. ▪ Extension and augmentation of physical infrastructure and utilities, as required including new on-site substation towards the north of the lot and water storage tank towards the eastern boundary.
Power Consumption	450 megawatts

Concept plans are provided as an attachment to this SEARs request.

Figure 2 Concept Ground Floor Plan



Source: Denton, 2025

5. SUMMARY OF STATUTORY PLANNING CONSIDERATIONS

5.1. SSD QUALIFICATION

The proposed data centre development will have a total power consumption of more than 15 megawatts, and accordingly it is SSD pursuant to Section 25 of Schedule 1 of the SEPP (Planning Systems) 2021.

5.2. PERMISSIBILITY

The site relevant to this SEARs request is zoned IN (General Industrial) under the IE SEPP. Under the IE SEPP, 'data centres' are a type of 'light industry' which is captured under the 'industry' group term. Accordingly, 'data centres' are permitted with consent in the IN1 zone under the IE SEPP.

5.3. INDUSTRY SPECIFIC SEARS QUALIFICATION

As above, the proposal is permissible with consent and declared SSD. It is eligible for 'industry specific' SEARs because it:

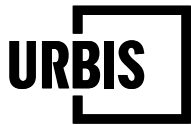
- Would not be categorised as 'designated development' under Schedule 3 of the *Environmental Planning and Assessment Regulation 2021* (EP&A Regulation) – refer to indicative diesel fuel storage calculations at Appendix A.
- Is permitted with consent under the IE SEPP; and
- Is not a Concept SSDA.

5.4. KEY DEVELOPMENT STANDARDS & LEGISLATION

The IE SEPP serves as the primary planning instrument applicable to the site. Notably, it does not specify maximum building heights in RLs or meters. Instead, it mandates that the consent authority must ensure that: (a) the building heights will not adversely affect the amenity of adjacent residential areas, and (b) the site topography is adequately considered. Although the IE SEPP does not establish specific building height controls, the Penrith DCP 2014 does set a maximum building height of 15 meters. Additionally, the site is not subject to a floor space ratio (FSR) control under any statutory planning instrument.

The following legislation is relevant to the project, and will be considered as part of the SSDA:

- *State Environmental Planning Policy (Industry and Employment) 2021*
- *Environment Protection and Biodiversity Conservation Act 1999*
- *Biodiversity Conservation Act 2016*
- *National Parks and Wildlife Act 1974*
- *Protection of the Environment Operations Act 1997*
- *State Environmental Planning Policy (Resilience and Hazards) 2021*
- *State Environmental Planning Policy (Transport and Infrastructure) 2021*
- *State Environmental Planning Policy (Sustainable Buildings) 2022*



6. OVERVIEW

I trust the information provided with this letter provides sufficient details to provide the Department with a comprehensive understanding of the proposed development to facilitate the issue of industry-specific SEARs.

If you require any further information, please do not hesitate to contact me to discuss.

Kind regards,

A handwritten signature in black ink, which appears to read "CERALTAP" or "CERALTAP" with a stylized flourish at the end.

Christopher Croucamp
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